

Court No. - 39

Case :- WRIT - C No. - 35134 of 2014

Petitioner :- Raj Kumar Sharma

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- R.P. Upadhyay

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Krishna Murari,J.

Hon'ble Ashwani Kumar Mishra,J.

Heard Sri R.P. Upadhyay, learned counsel appearing for the petitioner and Sri Baleshwar Chaturvedi, who has accepted notice on behalf of the respondent-corporation.

The petitioner has approached this court seeking a writ of mandamus to command the respondent authorities permitting payment of the electricity dues amounting to Rs.1,28,070/- in easy installments within stipulated period and no coercive action may be taken against the petitioner.

Perusal of the record shows that the petitioner had obtained a power connection having no.75113411 to run boring installed in his agricultural field. On account of certain financial distress, the petitioner could not pay the regular electricity bills issued by the respondents. The respondent- corporation has initiated recovery proceedings for recovery of outstanding electricity dues for a sum of Rs.1,28,070/-. Learned counsel for the petitioner submits that the petitioner is ready and willing to deposit the outstanding electricity dues in easy installments.

Clause 6.14 of the U.P. Electricity Supply Code, 2005 provides for installment facility, the same is read as under:-

"6.14. Installment Facility:

(i) The Licensee may extend the facility of instalments to those consumers only who are in financial distress. However, no waiver of surcharge shall be allowed.

(ii) No officer below the rank of Executive Engineer shall grant installments. The Executive Engineer/DGM/and General Manager can grant up to maximum of two, three or four monthly installments respectively. However, first installment shall not be less than 40% of the total amount. Where the amount for installments exceeds Rs.10,000 (Ten thousand), the consumer shall be asked to deposit post dated cheques of the installments to the Licensee."

Thus, the U.P. Electricity Supply Code, 2005 itself contains a

provision for payment of outstanding dues in installments, in deserving cases. In such circumstances, the writ petition is disposed of with liberty to the petitioner to make an application before the appropriate authority in accordance with the provisions of Clause 6.14 of the U.P. Electricity Supply Code, 2005 within a period of three weeks along with a certified copy of this order. In case, such application is made by the petitioner, the appropriate authority is directed to decide the same by taking sympathetic view in the matter and by passing a speaking and reasonable order within a further period of three weeks from the date of making of such application. The respondent authorities are directed not to adopt coercive steps against the petitioner for recovery of the outstanding dues for a period of two months or till the disposal of application of the petitioner, whichever is earlier.

The writ petition stands disposed of.

Order Date :- 10.7.2014

Ashok Kr.